

#56323 SSK/PPT/ew

2020N-0060

**IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, LAW DIVISION**

CIRCUIT CLERK
COOK COUNTY, IL
2021L007302

14517593

TENELL COLEMAN and ANDREW
GATES, as Independent Co-Administrators
of the Estate of DAJUAN GATES, deceased,

Plaintiffs,

v.

No.: 2021 L 007302

VILLAGE OF FOREST PARK, VILLAGE
OF OAK PARK, and VILLAGE OF RIVER
FOREST,

Defendants.

Amended Complaint at Law

**Police Officers Disregard Medical Emergency of Citizen in Custody
who is within feet of Emergency Room**

Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, by and through their attorneys, TOMASIK KOTIN KASSERMAN, LLC, complaining of defendants, VILLAGE OF FOREST PARK ("FOREST PARK"), VILLAGE OF OAK PARK ("OAK PARK"), and VILLAGE OF RIVER FOREST ("RIVER FOREST") state as follows:

Allegations Common to All Counts

1. At all times relevant, defendants, FOREST PARK, OAK PARK, and VILLAGE OF RIVER FOREST operated police departments in Cook County, Illinois.
2. At all times relevant, Forest Park police officers were agents and/or employees of defendant, FOREST PARK.
3. At all times relevant, Oak Park police officers were agents and/or employees of defendant, OAK PARK.

4. At all times relevant, River Forest police officers were agents and/or employees of defendant, RIVER FOREST.

5. On August 22, 2020, at approximately 4:12 p.m., DAJUAN GATES was operating a motor vehicle in Forest Park and allegedly proceeded through a stop sign without coming to a complete stop.

6. On August 22, 2020, at approximately 4:12 p.m., a Forest Park police officer witnessed the alleged traffic violation and pursued DAJUAN GATES.

7. On August 22, 2020, at approximately 4:20 p.m., an Oak Park police officer handcuffed DAJUAN GATES with his arms behind his back on the southwest corner of Madison St. and Maple Ave. in Oak Park because of his alleged traffic violation.

8. On August 22, 2020, at approximately 4:20 p.m., a River Forest police officer assisted in handcuffing DAJUAN GATES with his arms behind his back on the southwest corner of Madison St. and Maple Ave. in Oak Park because of his alleged traffic violation.

9. On August 22, 2020, at approximately 4:20 p.m., from the moment DAJUAN GATES was handcuffed and taken into custody, it was the duty of Forest Park, Oak Park, and River Forest police officers to protect the well-being of DAJUAN GATES.

10. On August 22, 2020, after placing DAJUAN GATES in handcuffs, Oak Park, Forest Park, and/or River Forest police officers were in control of DAJUAN GATES at the southwest corner of Madison St. and Maple Ave.

11. On August 22, 2020, between 4:20 p.m. and 4:22 p.m., while in control of Oak Park, Forest Park, and/or River Forest police officers, DAJUAN GATES became unresponsive, and could not stand or sit up.



12. On August 22, 2020, between 4:20 p.m. and 4:22 p.m, Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES was having a medical emergency.

13. On August 22, 2020, between 4:20 p.m. and 4:22 p.m, Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES required medical treatment.

14. On August 22, 2020, Rush Oak Park Hospital property was 12 feet away and Rush Oak Park Hospital ("ROPH") Emergency Department was approximately 60 feet from where he was having a medical emergency.



15. On August 22, 2020, between 4:20 p.m. and 4:22 p.m., a reasonable police officer would have walked DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

16. On August 22, 2020, at approximately 4:23 p.m., DAJUAN GATES was unresponsive.

17. On August 22, 2020, at approximately 4:23 p.m., DAJUAN GATES was having trouble breathing.

18. On August 22, 2020, at approximately 4:23 p.m., DAJUAN GATES could not stand up on his own.

19. On August 22, 2020, at approximately 4:23 p.m., DAJUAN GATES was forced by Oak Park, Forest Park, and/or River Forest police officers into the backseat of the Forest Park police car.

20. On August 22, 2020, at approximately 4:23 p.m., Oak Park, Forest Park, and/or River Forest police knew or should have known that DAJUAN GATES was having a medical emergency.

21. On August 22, 2020, at approximately 4:23 p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES required medical treatment.

22. On August 22, 2020, at approximately 4:23 p.m., a reasonable police officer should have taken DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

23. On August 22, 2020, between approximately 4:24 p.m. and 4:27p.m., DAJUAN GATES was unresponsive.

24. On August 22, 2020, between approximately 4:24 p.m. and 4:27p.m., DAJUAN GATES had trouble breathing.

25. On August 22, 2020, between approximately 4:24 p.m. and 4:27p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES was having a medical emergency.

26. On August 22, 2020, between approximately 4:24 p.m. and 4:27p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES required medical treatment.

27. On August 22, 2020, between approximately 4:24 p.m. and 4:27p.m., a reasonable police officer should have taken DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

28. On August 22, 2020, between approximately 4:24 p.m. and 4:27 p.m., instead of taking DAJUAN GATES to the Emergency Department across the street, the Oak Park, Forest

Park, and/or River Forest police officers put him in the back of a Forest Park squad car and ignored his health condition, and taunted and threatened him by saying:

- a. "Be a grown man."
- b. "These games are not going to work."
- c. "We are going to charge you federally."

29. On August 22, 2020, at approximately 4:27 p.m., a Forest Park police officer drove approximately 60 feet into the ROPH Emergency Department driveway with a handcuffed and unresponsive DAJUAN GATES in the backseat.

30. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., an unresponsive DAJUAN GATES was sitting in the backseat of the police car in the ROPH Emergency Department driveway, unable to lift his head up or sit upright.

31. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., while sitting in the ROPH Emergency Department driveway DAJUAN GATES' speech was slurred and incomprehensible.

32. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES was having a medical emergency.

33. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES required medical treatment.

34. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., the Forest Park police officer did not bring DAJUAN GATES into the Emergency Department or request medical assistance, instead taunted/threatened him by saying:

- a. "What is the point of this?"
- b. "Don't play these dramatic games."
- c. "You're being a pain in the ass."

35. On August 22, 2020, between approximately 4:27 p.m. and 4:29 p.m., a reasonable police officer should have taken DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

36. On August 22, 2020, at approximately 4:29 p.m., a Forest Park police officer drove away from the ROPH Emergency Department driveway with DAJUAN GATES handcuffed in the backseat and parked on southwest corner of the Madison St. and Maple Ave. intersection.

37. On August 22, 2020, at approximately 4:30 p.m., DAJUAN GATES had trouble breathing.

38. On August 22, 2020, at approximately 4:30 p.m., DAJUAN GATES had trouble speaking.

39. On August 22, 2020, at approximately 4:30 p.m., DAJUAN GATES could not stand up on his own without assistance.

40. On August 22, 2020, at approximately 4:30 p.m., DAJUAN GATES told the Forest Park police officer that he was having "health problems."

41. On August 22, 2020, at approximately 4:30 p.m., Forest Park police officer ignored DAJUAN GATES' pleas for help and medical assistance.

42. On August 22, 2020, at approximately 4:30 p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES was having a medical emergency.

43. On August 22, 2020, at approximately 4:30 p.m., Oak Park, Forest Park, and/or River Forest police officers knew or should have known that DAJUAN GATES required medical treatment.

44. On August 22, 2020, at approximately 4:30 p.m., a reasonable police officer should have taken DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

45. On August 22, 2020, between approximately 4:30 p.m. and 4:33 p.m., DAJUAN GATES could not stand without assistance.

46. On August 22, 2020, between approximately 4:30 p.m. and 4:33 p.m., DAJUAN GATES needed Oak Park, Forest Park, and/or River Forest police officers to hold him up against the police car to prevent him from falling.

47. On August 22, 2020, between approximately 4:30 p.m. and 4:33 p.m., Oak Park, Forest Park, and/or River Forest police officers knew that DAJUAN GATES was having a medical emergency.

48. On August 22, 2020, between approximately 4:30 p.m. and 4:33 p.m., the Oak Park, Forest Park, and/or River Forest police officers did not bring DAJUAN GATES into the Emergency Department or request medical assistance, instead taunted/threatened him by saying:

a. "You're being ridiculous."

b. "You're not going to gain anything from this."

49. On August 22, 2020, at approximately 4:33 p.m., Oak Park, Forest Park, and/or River Forest police officers knew that DAJUAN GATES needed medical attention and was in an out of consciousness.

50. On August 22, 2020, at approximately 4:33 p.m., a reasonable police officer should have walked DAJUAN GATES into the ROPH Emergency Department or sought medical treatment.

51. On August 22, 2020, between approximately 4:34 p.m. and 4:35 p.m., Oak Park, Forest Park, and/or River Forest police officers attempted to force DAJUAN GATES back into the police car while DAJUAN GATES was in and out of consciousness.

52. On August 22, 2020, at approximately 4:35 p.m., DAJUAN GATES was again placed unconscious in the back seat of a Forest Park police car.

53. On August 22, 2020, at approximately 4:36 p.m., DAJUAN GATES was left unconscious in the back seat of the Forest Park police car.

54. On August 22, 2020, at approximately 4:36 p.m., Forest Park police called for an ambulance to treat a "sick person."

55. On August 22, 2020, at approximately 4:36 p.m., the Forest Park police officer did not tell the paramedic dispatcher that DAJUAN GATES was unresponsive.

56. On August 22, 2020, at approximately 4:36 p.m., the Forest Park police officer did not tell the paramedic dispatcher that DAJUAN GATES was unconscious.

57. On August 22, 2020, at approximately 4:36 p.m., the Forest Park police officer did not tell the paramedic dispatcher that DAJUAN GATES was having a medical emergency.

58. On August 22, 2020, at approximately 4:36 p.m., a reasonable police officer should have walked DAJUAN GATES into the ROPH Emergency Department.

59. On August 22, 2020, at approximately 4:37 p.m., DAJUAN GATES was unconscious in the back seat of the Forest Park police car.

60. On August 22, 2020, at approximately 4:38 p.m., DAJUAN GATES was unconscious in the back seat of the Forest Park police car.

61. On August 22, 2020, at approximately 4:39 p.m., DAJUAN GATES was unconscious in the back seat of the Forest Park police car and was foaming at the mouth.

62. On August 22, 2020, at approximately 4:39 p.m., Oak Park, Forest Park, or River Forest police officer asks another officer “is he breathing.”

63. On August 22, 2020, at approximately 4:40 p.m., DAJUAN GATES is unconscious in the back seat of the Forest Park police car.

64. On August 22, 2020, at approximately 4:41 p.m., twenty-one minutes after an unresponsive DAJUAN GATES was placed in handcuffs, Oak Park Fire Department paramedics arrived on scene and found DAJUAN GATES on his knees, his wrists handcuffed behind his back, and with two Forest Park police officers holding him upright by his underarms.

65. On August 22, 2020, approximately one minute after they arrived on scene, Oak Park paramedics assessed that DAJUAN GATES was essentially “dead.”

66. On August 22, 2020, between approximately 4:42 p.m. and 4:43 p.m., Oak Park paramedics assessed that DAJUAN GATES was “without a pulse.”

67. On August 22, 2020, between approximately 4:42 p.m. and 4:43 p.m., Oak Park paramedics assessed that DAJUAN GATES “wasn’t breathing.”

68. On August 22, 2020, between approximately 4:42 p.m. and 4:43 p.m., Oak Park paramedics assessed that DAJUAN GATES’ pupils were “fixed.”

69. On August 22, 2020, between approximately 4:42 p.m. and 4:43 p.m., Oak Park paramedics assessed that DAJUAN GATES met the criteria for brain death.

70. The Oak Park paramedics that arrived on the scene on August 22, 2020, have concluded that Oak Park, Forest Park, and/or River Forest police officers should have “called an ambulance for DAJUAN GATES sooner.”

71. On August 22, 2020, Oak Park paramedics had to use a stretcher to get an unconscious DAJUAN GATES from the Forest Park police car to the ambulance.

72. At approximately 4:51 p.m., DAJUAN GATES was emergently transported to the ROPH Emergency Department, the same hospital that a handcuffed and semiconscious DAJUAN GATES had been in front of for more than 30 minutes.

73. On August 22, 2020, while DAJUAN GATES was in the intensive care unit, the Forest Park police officers handcuffed DAJUAN GATES to his hospital bed and took pictures of him.



74. On August 22, 2020, DAJUAN GATES, while he remained unconscious in a hospital bed, was released from Forest Park police custody prior to his death without charges being filed against him.

75. DAJUAN GATES, after being deprived of necessary medical attention for more than twenty minutes, never regained consciousness and was pronounced dead at 8:28 p.m. on August 23, 2020.

Count I
Wrongful Death- Negligence – Forest Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, FOREST PARK, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES well-being while he was in their control.

77. Defendant, FOREST PARK, by and through its agent and/or employee police officers, breached its duty in that it:

- a. Deprived DAJUAN GATES of medical attention;
- b. Failed to take DAJUAN GATES to the ROPH emergency room approximately 60 feet away;
- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES required medical treatment while in police custody
- f. Failed to timely seek medical attention for DAJUAN GATES;
- g. Failed to call an ambulance timely; and/or

- h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.

78. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamya Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, FOREST PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count II
Wrongful Death- Willful Wanton- Forest Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, FOREST PARK, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, FOREST PARK, knew that Plaintiffs' decedent, DAJUAN GATES, required medical attention.

78. Defendant, FOREST PARK, by and through its agent and/or employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for

the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in one or more of the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;
- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical condition for over twenty-one minutes.
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;
- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unconscious;
- k. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unresponsive;
- l. Intentionally failed to take DAJUAN GATES to the ROPH emergency room that was less than one block away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

79. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

80. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamya Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

81. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, FOREST PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count III
Survival- Negligence – Forest Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, FOREST PARK, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, FOREST PARK, by and through its agent/employee police officers, breached its duty in that it:

- a. Deprived DAJUAN GATES of medical care;
- b. Failed to take DAJUAN GATES to the ROPH emergency room that was approximately 60 feet away;
- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES required medical treatment;
- e. Failed to react to the fact that DAJUAN GATES required medical treatment;

- f. Failed to timely seek medical attention for DAJUAN GATES;
 - g. Failed to call an ambulance timely; and/or
 - h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.
78. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020, including conscious pain and suffering and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, FOREST PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count IV
Survival - Willful Wanton- Forest Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. FOREST PARK, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. FOREST PARK, by and through its agent/employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;
- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical emergency for over twenty-one minutes;
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;
- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unconscious;
- k. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unresponsive;
- l. Failed to take DAJUAN GATES to the ROPH emergency room that was less than one block away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

78. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020, including conscious pain and suffering and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, FOREST PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count V
Wrongful Death- Negligence – Oak Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, OAK PARK, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, OAK PARK, by and through its agent and/or employee police officers, breached its duty in one or more of the following ways:

- a. Deprived DAJUAN GATES of medical care;
- b. Failed to take DAJUAN GATES to the ROPH emergency room that was approximately 60 feet away;

- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES required medical treatment;
- e. Failed to react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Failed to timely seek medical attention for DAJUAN GATES;
- g. Failed to call an ambulance timely; and/or
- h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.

78. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamya Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, OAK PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count VI
Wrongful Death- Willful Wanton- Oak Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, OAK PARK, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, OAK PARK, knew that Plaintiffs' decedent, DAJUAN GATES, required medical attention.

78. Defendant, OAK PARK, by and through its agent and/or employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in one or more of the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;
- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical emergency for over twenty-one minutes
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;
- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unconscious;

- k. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unresponsive;
- l. Failed to take DAJUAN GATES to the ROPH emergency room that was less than one block away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

79. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

80. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamyia Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

81. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, OAK PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count VII
Survival- Negligence – Oak Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, OAK PARK, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, OAK PARK, by and through its agent/employee police officers, breached its duty in that it:

- a. Deprived DAJUAN GATES of medical care;
- b. Failed to take DAJUAN GATES to the ROPH emergency room that was approximately 60 feet away;
- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Failed to timely seek medical attention for DAJUAN GATES;
- g. Failed to call an ambulance timely; and/or
- h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.

78. As a direct and proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020 including, but not limited to, conscious pain and suffering, and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against Defendant, OAK PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count VIII
Survival - Willful Wanton- Oak Park

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, OAK PARK, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, OAK PARK, by and through its agent/employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;
- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical condition for over twenty-one minutes;
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;

- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform paramedic dispatch that DAJUAN GATES was unconscious;
- k. Deprived DAJUAN GATES of medical attention by failing to inform paramedic dispatch that DAJUAN GATES was unresponsive;
- l. Failed to take DAJUAN GATES to the ROPH emergency room that was 20 feet away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

78. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020 including, but not limited to, conscious pain and suffering, and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, OAK PARK, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count IX
Wrongful Death- Negligence – River Forest

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, RIVER FOREST, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES well-being while he was in their control.

77. Defendant, RIVER FOREST, by and through its agent and/or employee police officers, breached its duty in that it:

- a. Deprived DAJUAN GATES of medical attention;
- b. Failed to take DAJUAN GATES to the ROPH emergency room approximately 60 feet away;
- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES required medical treatment while in police custody
- f. Failed to timely seek medical attention for DAJUAN GATES;
- g. Failed to call an ambulance timely; and/or
- h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.

78. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamyia Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, RIVER FOREST, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count X
Wrongful Death- Willful Wanton- River Forest

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, RIVER FOREST, by and through its agent and/or employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, RIVER FOREST, knew that Plaintiffs' decedent, DAJUAN GATES, required medical attention.

78. Defendant, RIVER FOREST, by and through its agent and/or employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in one or more of the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;
- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical condition for over twenty-one minutes.

- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to timely react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;
- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unconscious;
- k. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unresponsive;
- l. Intentionally failed to take DAJUAN GATES to the ROPH emergency room that was less than one block away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

79. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

80. At the time of his death, Plaintiffs' decedent, DAJUAN GATES, was survived by his minor children, Da'Mia Gates; Shakira Gates; Dajuan Gates, Jr.; Tamyia Gates; and Jace Gates, each of whom have suffered personal and pecuniary damages because of his death.

81. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 740 ILCS 180/1, et. seq., commonly known as the Wrongful Death Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, RIVER FOREST, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count XI
Survival- Negligence – River Forest

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. Defendant, RIVER FOREST, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. Defendant, RIVER FOREST, by and through its agent/employee police officers, breached its duty in that it:

- a. Deprived DAJUAN GATES of medical care;
- b. Failed to take DAJUAN GATES to the ROPH emergency room that was approximately 60 feet away;
- c. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way;
- d. Failed to timely recognize that DAJUAN GATES required medical treatment;
- e. Failed to react to the fact that DAJUAN GATES required medical treatment;
- f. Failed to timely seek medical attention for DAJUAN GATES;
- g. Failed to call an ambulance timely; and/or
- h. Failed to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch.

78. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020, including conscious pain and suffering and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, RIVER FOREST, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

Count XII
Survival - Willful Wanton- River Forest

1-75. Plaintiffs incorporate Facts Common to All Counts as if stated here.

76. RIVER FOREST, by and through its agent/employee police officers, owed Plaintiffs' decedent, DAJUAN GATES, a duty to act reasonably and to protect DAJUAN GATES' well-being while he was in their control.

77. RIVER FOREST, by and through its agent/employee police officers, breached its duty because it exhibited an utter indifference and/or conscious disregard for the safety of Plaintiffs' decedent, DAJUAN GATES, by engaging in the following willful and wanton acts:

- a. Knew that DAJUAN GATES required necessary lifesaving medical attention but failed to provide him medical attention timely;
- b. Deprived DAJUAN GATES of medical care while he was unconscious in the backseat of a police car for over five minutes;

- c. Deprived DAJUAN GATES of medical attention while he suffered from a medical emergency for over twenty-one minutes;
- d. Failed to timely recognize that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- e. Failed to react to the fact that DAJUAN GATES was unresponsive and required medical treatment while in police custody;
- f. Intentionally failed to timely seek medical attention for DAJUAN GATES;
- g. Refused to call an ambulance timely;
- h. Decided not to communicate the seriousness of DAJUAN GATES' condition to 911 dispatch;
- i. Deprived DAJUAN GATES of medical attention by calling an ambulance instead of bringing him in to Emergency Department that they had been parked in front of for more than 20 minutes;
- j. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unconscious;
- k. Deprived DAJUAN GATES of medical attention by failing to inform 911 dispatch that DAJUAN GATES was unresponsive;
- l. Failed to take DAJUAN GATES to the ROPH emergency room that was less than one block away; and/or
- m. Failed to notify ROPH emergency room that DAJUAN GATES was having a medical emergency in its entrance way.

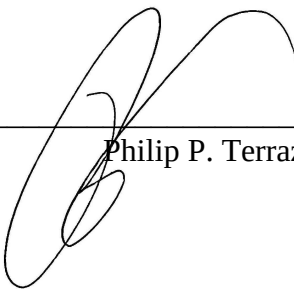
78. As a proximate result of one or more of the foregoing willful and wanton acts or omissions, Plaintiffs' decedent, DAJUAN GATES, died on August 23, 2020.

79. As a proximate result of one or more of the foregoing acts or omissions, Plaintiffs' decedent, DAJUAN GATES, suffered personal and pecuniary injuries prior to his death on August 23, 2020, including conscious pain and suffering and had he survived he would have been entitled to bring an action for personal and pecuniary injuries as such action has survived him.

80. Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, bring this claim pursuant to 755 ILCS 5/27-6, et. seq., commonly known as the Survival Act of the State of Illinois.

WHEREFORE, Plaintiffs, TENELL COLEMAN and ANDREW GATES, as Independent Co-Administrators of the Estate of DAJUAN GATES, deceased, request judgement against defendant, RIVER FOREST, in an amount excess of the minimum amount required for jurisdiction in the Law Division of the Circuit Court of Cook County, Illinois.

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